

SENATE BILL 1689

By Briggs

AN ACT to amend Tennessee Code Annotated, Title 4; Title 5; Title 6; Title 7; Title 10, Chapter 7, Part 5; Title 12; Title 37, Chapter 2, Part 4; Title 39; Title 47, Chapter 18, Part 33; Title 49, Chapter 7, Part 8; Title 55, Chapter 25; Title 62, Chapter 36; Title 63, Chapter 10, Part 4; Title 66, Chapter 29, Part 1 and Title 68, Chapter 18, Part 2, relative to public records.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 10-7-504, is amended by adding the following as a new subsection:

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(1) As used in this subsection (), unless the context otherwise requires:

(A) "Governmental entity" means this state and any county, municipality, city, or other political subdivision of this state; and

(B) "Personal identifying information" means a person's home and work addresses, telephone numbers, and social security number.

(2)

(A) Notwithstanding this part to the contrary and in addition to the protections established under the Tennessee Information Protection Act, compiled in title 47, chapter 18, part 33, it is an offense for a person to use an individual's personal identifying information obtained from a governmental entity pursuant to this part with the intent to use or sell such information for commercial use.

(B) Upon the person presenting valid evidence of identification to the governmental entity or the entity's designee, the person shall sign an

affidavit, prescribed by the office of open records counsel, containing the person's name, signature, and any other information deemed necessary by the office of open records counsel stating that the information received will not be used or sold by the person for commercial purposes.

(C)

(i) A violation of subdivision () (2)(A) is a Class B misdemeanor, punishable only by a fine of five hundred dollars (\$500).

(ii) It is a separate offense for every individual whose personal identifying information is used by the person for commercial purposes in violation of this subsection ().

(3) This section does not limit the use of an individual's personal identifying information for commercial purposes under this subsection () if the individual expressly authorizes the use of such information.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.